

1.

CASE #	CASE NAME	HEARING NAME
CVPS2102359	MICHAEL A. CAPOZZA VS JOSEPH RUBIN	MOTION AUTHORIZING SERVICE OF PROCESS ON DEFENDANT RUBIN CAPITAL GROUP, LLC VIA CALIFORNIA SECRETARY OF STATE BY MICHAEL A. CAPOZZA

Tentative Ruling:

Motion is granted. Moving party to submit an order for Court's signature.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403625	STROTHERS VS FORD MOTOR COMPANY	MOTION TO COMPEL PLAINTIFF CYNTHIA STROTHERS' DEPOSITION AND REQUEST FOR MONETARY SANCTIONS AGAINST PLAINTIFF AND STRATEGIC LEGAL PRACTICES, APC, JOINTLY AND SEVERALLY

Tentative Ruling:

Moving party: Defendant Ford Motor Co.

Responding party: Plaintiff Cynthia Strothers ("Plaintiff") [successor in interest to George Strothers who passed away after this action was commenced]

On June 26, 2024, Plaintiff George Strother filed a Complaint against Ford alleging violations of the Song-Beverly Consumer Warranty Act, breach of implied warranty, and fraudulent inducement–concealment as well as a negligent repair claim against Defendant Raceway Ford relating to alleged defects with Plaintiff's 2023 Ford F-150.

On December 3, 2024, Ford timely serve its Notice of Deposition for Plaintiff George Strothers to appear for a deposition on March 7, 2025. (Declaration of Camden C. Pisciotta ("Pisciotta Decl."), ¶ 3, Ex. A.) In the email serving the deposition notice, Ford asked Plaintiff George Strothers to provide alternative availability for a deposition to occur within the next 30 days, if the noticed date did not work for Plaintiff George Strothers. (Id. at ¶ 3, Ex. B.) Plaintiff never responded to Ford's request nor provided alternative dates. (Id. at ¶ 3.)

On March 7, 2025, Plaintiff served an objection to the deposition notice claiming it was "unilaterally noticed by Defendant for a date and time on which Plaintiff and/or Plaintiff's counsel [were] unavailable." (Id. at ¶ 4, Ex. C.) The objection stated that Plaintiff would not appear for the set date and that Plaintiff would meet and confer with